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Athens, 31-10-2024
Protocol No.: 2989

DECISION 40/2024
(Plenary)

The Hellenic Data Protection Authority convened, at the invitation of its President, in an extraordinary session at its headquarters on 06-06-2023, in order to examine the case referred to in the background of this document. Present via teleconference were the President of the Authority Konstantinos Menoudakos, the regular members Spyridon Vlachopoulos, as rapporteur, Grigorios Tsolias, Konstantinos Lamprinoudakis, Christos Kalloniatis, and Aikaterini Iliadou, and the alternate member Nikolaos Libos (in place of the regular member Charalampos Anthopoulos, who, although duly summoned, did not attend due to a conflict). In the session, without voting rights, were present, at the request of the President, Eleni Kapralou, legal expert, as assistant rapporteur, and Irini Papageorgopoulou, employee of the Administrative Affairs Department, as secretary.

The Authority took into account the following:

With the complaint No. G/IN/9156/27-07-2022 submitted to the Authority and the attached documents, A (hereinafter referred to as "the complainant"), who served in the National Intelligence Service (hereinafter "NIS" or "the complained party"), complains about the latter for the leakage of his personal data. According to the allegations, prior to the publication of Law 4873/2021 (Government Gazette A'/248/16-12-2021), but also before the issuance of decision No. ... by the Minister of Citizen Protection, regarding the transfer of the complainant, based on Article 74 of this Law, from his permanent organic position in the NIS to a personal position in the ... branch of the Hellenic Police (...), the NIS transmitted via the Directorate of Administrative Support and Human Resources to the Hellenic Police (hereinafter ELAS) the document No. ..., which included lists with the details of the personnel being transferred from the NIS, including the complainant. Specifically, regarding the complainant, these lists contained his full name, branch/category, as well as the subject of his studies, information which he claims was unlawfully leaked to ELAS. Furthermore, the complainant asserts that due to the non-publication of Law 4873/2021 in the Government Gazette (hereinafter "GG"), in which it was published on 16-12-2021, this Law had not come into effect at the time of the transmission of his personal data to ELAS, and the fact that this data was transmitted one day before its publication in the GG, namely on 15-12-2021, renders this transmission unlawful. Additionally, he claims that his personal data was unlawfully processed by employees of ELAS, who were not authorized for this processing during the period from 15-12-2021 to 07-01-2022, when the decision of the Chief of ELAS (...) regarding the placement of the complainant in ... was issued. To support his above claims, he argues that at the time of the transmission, there existed the right of referral by the President of the Republic (Article 42 of the Constitution), claiming that the Law could ultimately not be published in the Government Gazette if the President of the Republic referred the said bill back to Parliament. Finally, he asserts that the processing in question was unlawful also because there was no prior opinion from the Authority regarding this transmission. The Authority, in the context of examining the above complaint, with its document No. G/EX/2064/12-08-2022, invited the complained party to present its views on the allegations, providing all relevant documentation. In its response, with protocol No. G/IN/9698/25-08-2022, the complained party claimed that after the passage of Law 4873/2021 and the signature by the President of the Republic of the order for its publication in the Government Gazette, it transmitted on 15-12-2021 to the Minister of Citizen Protection,

to the Deputy Minister of Citizen Protection and the Chief of the Hellenic Police the document with reference number ..., accompanied by lists of the personnel serving in the EYP, which included the full names of the employees, their category, branch, rank, as well as the degrees they held, information

necessary for the issuance of the transfer and placement decisions according to the provisions of Article 74 of Law 4873/2021 (Government Gazette A'/248/16-12-2021). Furthermore, the EYP claimed that the contested transmission took place on 15-12-2021 to the Ministry of Citizen Protection, which is a public entity, under the terms of Article 26 of Law 4624/2019, that is, within the framework of the execution of the EYP's duties, but also the stipulated conditions of Article 24 of the aforementioned Law, in light of the impending transfer of the complainant and the need for the Hellenic Police to verify his details before the administrative act of his transfer was completed. Additionally, it stated that the data transmitted were accurate and were securely transmitted to the competent administrative bodies for the issuance of the aforementioned administrative acts, and that this transmission occurred just one day before the entry into force of Law 4873/2021 and should be examined within the context of cooperation and preliminary work of public services, which is a standard practice among services when it comes to implementing similar legal provisions, given that the transmission in question would have taken place anyway on 16-12-2021, the date of entry into force of the aforementioned Law. Finally, the EYP claims that there is no obligation in this case for it to obtain an opinion from the Authority.

In response to what the EYP stated in its above document, the complainant, with his supplementary memorandum numbered G/EIS/345/18-01-2023, reiterated the claims mentioned in his complaint, adding that the EYP arbitrarily decided on the type of personal data it disclosed, given that there was no relevant official document request from the Ministry of Citizen Protection, and that the EYP's claim that the transmission and processing of his personal data took place between public services for the purposes of Law 4873/2021 is unfounded, since public services are not exempt from the application of Law 4624/2019 and that during the relevant period, Law 4873/2021 had not come into force.

Subsequently, the Authority summoned both parties to a hearing via teleconference on 24-01-2023, through the notifications numbered G/EX/184/17-01-2023 and G/EX/185/17-01-2023, in order to present their views on the case. During the session of the Authority's Plenary on 24-01-2023, the complainant appeared in person via teleconference with witness B, to whom no questions were posed during the hearing, and on behalf of the respondent were G, Legal Advisors of the EYP, D, Head of the Administrative Support and Human Resources Directorate, and E, Data Protection Officer of the EYP. During the hearing, the parties presented their views, specifically the complainant, referring to his complaint, emphasized that the document containing his personal data was transmitted to the Hellenic Police before the Law that provided for his transfer came into force, while the representatives of the EYP stated that this occurred because they had been informed by the National Printing Office that the publication in the Government Gazette would take place that day (15-12-2021), but it ultimately did not happen due to a technical failure of the Printing Office, and that the acceleration of the transmission by the EYP was done for service reasons. Subsequently, the parties were given a deadline and submitted timely, the complainant the memorandum numbered G/EIS/995/09-02-2023, and the respondent the memorandum numbered G/EIS/884/03-02-2023.

The complainant, with the aforementioned document memorandum, reiterated the claims he had previously made before the Authority, adding that: a) The EYP did not know and could not know whether the President of the Republic would sign the Law or whether she would refer it back to the Parliament for the reasons provided in the Constitution, or whether the government would withdraw the Law before it was published, and that in any case there was no provision in force for the disclosure of his personal data on 15/12/2021, b) Besides the fact that Law 4873/2021 was not in force on 15-12-2021, additionally, at no point does it provide for the procedure for the transmission and processing of the personal data of the transferring employees, nor does it mention the recipients to whom this data would be disclosed, c)

5

More information was transmitted than was necessary, specifically for the purpose of the transfer, it was not required to transmit the branch, category, rank, and total number of degrees held, since according to Presidential Decree 50/2001, the classification of personnel in a category and branch of the Hellenic Police (ELAS) is conducted based on the formal qualifications of the employees, that is,

depending on whether they hold a university degree or not. d) According to Article 12 of Law 3649/2008 (Government Gazette 39/A'3.3.2008), the Internal Regulation of the National Intelligence Service (EYP) and the attached Table of Composition and Distribution of Personnel in its branches are confidential, and according to Article 14 of the same Law, criminal penalties are provided for anyone who discloses information concerning the service status of the personnel. e) Given that Law 4873/2021 does not explicitly mention the exact procedure for the transmission of confidential personal data of EYP employees to third parties, there should have been an opinion from the Hellenic Data Protection Authority (HDPa) in its explanatory report regarding the disclosure of confidential personal data of EYP employees, the necessity of notifying the Ministry of Citizen Protection and ELAS of the exact employment subject of EYP personnel, as well as the personal data of this personnel that needed to be communicated to ELAS, and indeed without ELAS having submitted a relevant request. f) The claim of EYP that this transmission occurred between public services for the purposes of Law 4873/2021 is unfounded, as, according to its assertion, public services must comply with personal data legislation and not apply "preventively" laws that "were to come into effect" before they come into effect. g) The claim of EYP that this transmission occurred within the framework of preliminary work and cooperation of public services is not valid for the reason that no relevant request was even sent to EYP from the Ministry of Citizen Protection. h) The aforementioned illegal disclosure of personal data was made with intent on 15-12-2021.

The reported EYP in the above document states that a) The complainant's assertion that the President of the Republic could return the passed bill to Parliament is made in vain, as it concerns a regime condition under which the President of the Republic never exercises a return, meaning it is a purely symbolic authority, and in any case, the Law was indeed issued and came into effect. b) In this case, there was a transmission of personal data under Article 26 paragraph 1 of Law 4624/2019, from one public entity to another public entity and within the framework of the execution of duties of the transmitting entity—observing the condition of Article 24 paragraph 1(b) of Law 4624/2019 regarding the necessity of processing in view of the impending transfer of the complainant and the need to verify his data by ELAS, before this administrative process of the complainant's transfer was completed by them. That is, according to EYP's claims, there was no leak of personal data, as no provision of the General Data Protection Regulation (GDPR) was violated, since the transmission was lawful and legitimate, and the data were absolutely necessary for the purpose of the transmission and were accurate. c) There is no provision in personal data legislation that imposes an obligation on EYP to seek an opinion from the competent supervisory authority before proceeding with the transmission of the aforementioned personal data. d) Even if it were to be assumed that there was a violation of personal data legislation, it lasted only a few hours, as although the National Printing Office had assured EYP of same-day publication, this was not feasible due to a technical failure of the Printing Office, and it is not due to any intent of EYP. e) Due to the significant publicity that the issue of the transfer had received, the complainant was aware of his impending transfer and had the subsequent knowledge from the competent administrative body of his data for the issuance of the relevant transfer decision. f) The complainant, by notifying the Authority of the details of the head of the Administrative Support and Human Resources Directorate of EYP, himself violates the duty of confidentiality to which he is bound even after his departure (Article 14 of Law 3649/2007).

The Authority, after examining all the elements of the file and the discussions that took place in the meeting on 24-01-2023, after hearing the rapporteur and the clarifications from the assistant rapporteur, who attended without voting rights after thorough discussion.

7

CONSIDERED ACCORDING TO THE LAW

1. Whereas, according to the provisions of Articles 51 and 55 of the General Data Protection Regulation (EU) 2016/679 (hereinafter, GDPR) and Article 9 of Law 4624/2019 (Government Gazette A' 137), the Authority has the competence to supervise the implementation of the provisions of the GDPR, this Law, and other regulations concerning the protection of individuals from the processing of personal data. Specifically, from the provisions of Articles 57 paragraph 1 point (f) of the GDPR and 13

paragraph 1 point (g) of Law 4624/2019, it follows that the Authority has the competence to address the aforementioned complaint against the National Intelligence Service (EYP), as it concerns the sharing involving the transmission of data included in a filing system as defined in Article 4 points 2 and 6 of the GDPR, thus for processing subject to the regulatory scope of Articles 2 paragraph 1 of the GDPR and 2 of Law 4624/2019.

2. Whereas, specifically, according to Article 4 point 1 of the GDPR, "personal data means any information relating to an identified or identifiable natural person ('data subject'); an identifiable natural person is one who can be identified, directly or indirectly, in particular by reference to an identifier such as a name, an identification number, location data, an online identifier, or to one or more factors specific to the physical, physiological, genetic, psychological, economic, cultural, or social identity of that natural person."

3. Whereas, furthermore, according to Article 4 point 2 of the GDPR, the processing of personal data is "any operation or set of operations which is performed on personal data or on sets of personal data, whether or not by automated means, such as collection, recording, organization, structuring, storage, adaptation or alteration, retrieval, consultation, use, disclosure by transmission, dissemination or otherwise making available, alignment or combination, restriction, erasure or destruction."

4. Whereas, in Article 4 point 7 of the GDPR, the data controller is defined as "the natural or legal person, public authority, agency, or other body which, alone or jointly with others, determines the purposes and means of the processing of personal data; where the purposes and means of such processing are determined by Union law or the law of a Member State, the controller or the specific criteria for its designation may be provided for by Union law or the law of a Member State."

5. Whereas, in Article 5 paragraph 1 of the GDPR, the principles that must govern processing are set out, and specifically: "1. Personal data shall be: a) processed lawfully, fairly, and in a transparent manner in relation to the data subject ('lawfulness, fairness, and transparency') (...)"

6. Whereas, furthermore, according to the principle of accountability introduced by the second paragraph of the same article, it is expressly stated that the data controller "shall be responsible for, and be able to demonstrate compliance with, paragraph 1 ('accountability')." This principle, which constitutes a cornerstone of the GDPR, entails the obligation of the data controller to be able to demonstrate compliance and for this purpose to verify and legally document a processing operation carried out in accordance with the legal bases provided by the GDPR and national data protection law.

7. Whereas, specifically, in order for a processing operation to be considered lawful (and in accordance with Article 5 paragraph 1 of the GDPR), one of the legal grounds for processing provided in Article 6 paragraph 1 (points a-f) of the GDPR must apply, namely "1. Processing shall be lawful only if and to the extent that at least one of the following applies: a) the data subject has given consent to the processing of his or her personal data for one or more specific purposes, b) processing is necessary for the performance of a contract to which the data subject is party or in order to take steps at the request of the data subject prior to entering into a contract, c) processing is necessary for compliance with a legal obligation to which the controller is subject, d) processing is necessary in order to protect the vital interests of the data subject or of another natural person, e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller, f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject."

9

necessary for the purposes of the legitimate interests pursued by the data controller or a third party, unless the interests or fundamental rights and freedoms of the data subject which require the protection of personal data prevail, particularly if the data subject is a child. The provision (e) of the first paragraph does not apply to processing carried out by public authorities in the exercise of their duties.

8. Since for personal data to be lawfully processed, that is, processed in accordance with the

requirements of the GDPR, the conditions for the application and adherence to the principles of Article 5(1) of the GDPR must be cumulatively met, as also indicated by the ruling of the Court of Justice of the European Union (CJEU) on 16-01-2019 in case C496/2017 Deutsche Post AG v. Hauptzollamt Köln. The existence of a legal basis (Article 6 GDPR) does not exempt the data controller from the obligation to adhere to the principles (Article 5(1) GDPR) regarding the legitimacy, necessity, and proportionality as well as the principle of data minimization. In the event that any of the principles set out in Article 5(1) GDPR are violated, the processing in question is deemed unlawful (contrary to the provisions of the GDPR) and the examination of the conditions for the application of the legal bases of Article 6 GDPR becomes unnecessary. Thus, the unlawful collection and processing of personal data in violation of the principles of Article 5 GDPR cannot be remedied by the existence of a legitimate purpose and legal basis. Furthermore, the CJEU in its ruling of 01-10-2015 in the context of case C-201/14 (Smaranda Bara) ruled that informing the data subject prior to the processing of their data is a prerequisite for lawful and legitimate processing of personal data.

1 “57. However, any processing of personal data must comply, on the one hand, with the principles that must be adhered to regarding the quality of the data, as set out in Article 6 of Directive 95/46 or Article 5 of Regulation 2016/679 and, on the other hand, with the fundamental principles of lawful data processing listed in Article 7 of this Directive or Article 6 of this Regulation (see judgments of 20 May 2003, Österreichischer Rundfunk, C-465/00, C-138/01 and C-139/01, EU:C:2003:294, paragraph 65, as well as of 13 May 2014, Google Spain and Google, C-131/12, EU:C:2014:317, paragraph 71).”

2 See Decision 26/2019 of the Data Protection Authority, paragraph 5. Compare with Decision 38/2004 of the Data Protection Authority, and 12/2022 of the Data Protection Authority.

10

processing of their data. Specifically, the data controller, in the context of adhering to the principle of lawful or fair processing of personal data, is obliged to inform the data subject that it intends to process their data in a lawful and transparent manner and must be able to demonstrate compliance with these principles at any time (principle of accountability under Article 5(2) in conjunction with Articles 24(1) and 32 GDPR).

9. Furthermore, the recognition and selection of the appropriate legal basis from those provided in Article 6(1) GDPR is closely linked to the principle of lawful or fair processing as well as the principle of purpose limitation, and the data controller must not only select the appropriate legal basis prior to the commencement of processing but also inform the data subject in accordance with Article 13(1)(c) GDPR about its use, as the choice of each legal basis has a legal impact on the exercise of the rights of the data subjects. Specifically, the selection of the legal basis for processing personal data must take place prior to the commencement of processing, and the data controller is obliged, based on the principle of accountability (see Article 5(2) in conjunction with Articles 24 and 32 GDPR), to select the appropriate legal basis from those provided in Article 6(1) GDPR, as well as to be able to demonstrate adherence to the principles of Article 5(1) GDPR, including necessarily the documentation on which it based its conclusion regarding the relevant legal basis. Moreover, with the GDPR, a new compliance model was adopted, the central axis of which is the aforementioned principle of accountability, under which the data controller is obliged to design, implement, and generally take the necessary measures and

3 CJEU, C-201/14, Smaranda Bara et al. v. Casa Națională de Asigurări de Sănătate et al., 1 October 2015, particularly paragraph 34.

4 See CJEU C496/17, paragraph 59 and CJEU C-201/14 of 01-10-2015, paragraphs 31-35 and particularly 34, as well as the relevant reference in Decision 26/2019 of the Data Protection Authority, paragraph 5.

5 See in this regard Decisions of the Data Protection Authority 26/2019, paragraph 6 and Data Protection Authority 43/2019, paragraph 5.

6 See Guidelines 2/2019 of the European Data Protection Board “on the processing of personal data

under Article 6 (1) (b) GDPR in the context of the provision of online services to data subjects,” pages 4-67, paragraphs 1, 12, 17-20, as well as Decision of the Data Protection Authority 26/2019, paragraph 6.

11

Policies, in order for the processing of data to be in compliance with the relevant legislative provisions. Furthermore, the data controller bears the additional duty to demonstrate at all times its compliance with the principles of Article 5(1) of the GDPR. It is not coincidental that the GDPR incorporates accountability (as already mentioned in Article 5(2) of the GDPR) into the regulation of the principles (Article 5(1) of the GDPR) governing processing, thereby endowing it with the function of a mechanism for their compliance, essentially reversing the "burden of proof" regarding the legality of processing (and generally the adherence to the principles of Article 5(1) of the GDPR), transferring it to the data controller, so that they bear the burden of invoking and proving the legality of the processing.

10. Since the principles of fair and transparent processing require that the data subject be informed of the existence of the processing operation and its purposes. The data controller must provide the data subject with any further information necessary to ensure fair and transparent processing, taking into account the specific circumstances and context in which the processing of personal data takes place. If personal data is permitted to be disclosed to another recipient, the data subject must be informed when the personal data is disclosed to the recipient for the first time. When the data controller intends to process personal data for a purpose other than that for which it was collected, the data controller must provide the data subject, prior to such further processing, with information about that purpose and any other necessary information (Recitals 60-61 of the GDPR). Specifically, according to paragraphs 1 and 2 of Article 13 of the GDPR, when personal data has been collected from the data subject, the data controller provides the data subject with the information referred to in these paragraphs, while paragraphs 3 and 4 of the same article stipulate that "When the data controller intends to further process personal data for a purpose other than that for which the personal data was collected, the data controller provides the data subject, prior to such further processing, with information about that purpose and any other necessary information," as stated in paragraph 2. 4. Paragraphs 1, 2, and 3 do not apply when and to the extent that the data subject already has the information. According to the above, the data controller has an obligation to proactively inform the data subject, in the sense that this obligation does not depend on a request from the data subject, but rather the data controller must comply with it proactively, regardless of whether the data subject expresses interest in the information.

11. Since according to Article 1(1) of Law 3649/2008 "The National Intelligence Service (NIS) is an independent public policy service and is subject to the Minister of Interior, who is responsible for determining the action of the NIS within the framework of the national priorities of government policy, subject to Article 5(3) of Law 2292/1995." Furthermore, according to Article 5(3) of Presidential Decree 81/2019 "The National Intelligence Service, which was established by Article 1 of Law Decree 2421/1953 and was renamed and organized by Law 1645/1986 and Law 3649/2008 (A 39), is transferred, as a whole of responsibilities, positions, and personnel, to the Prime Minister."

12. Since furthermore, with Article 74 of Law 4873/2021 (Government Gazette A'/248/16-12-2021): Regulation of personnel issues of the National Intelligence Service (NIS) "1. The personnel serving in Subdivision C of Directorate B of Collection and Analysis of Information (D.SY.A.P-B) of subparagraph a of paragraph 1 of Article 1 of Presidential Decree 1/2017 (A' 2) and in the offices of the Regional Support Units of Subdivision C of subparagraph b of paragraph 1 of Article 1 of the aforementioned presidential decree as specified in the Internal...

13

According to the Regulation and the attached Table of Composition and Distribution of Personnel of the E.Y.P., personnel are transferred to Central or Regional Services of the Hellenic Police, particularly those exercising public and state security responsibilities, in deviation from any general or special provision, maintaining the same employment relationship, to newly established personal positions of civil personnel, which are abolished with the departure of the employees who occupy them in any

manner.

2. The personnel referred to in paragraph 1 are transferred to organizational structures of the Hellenic Police as provided in its Regulation, depending on their qualifications - specialties that correspond to the same category/educational level to which they belong, based on the formal qualifications they possess and in accordance with the provisions of Presidential Decree 50/2001 (A' 39), with the same rank and salary scale they held in their originating Service. A decision of the Minister of Citizen Protection is issued for the transfer of the personnel, which is not published in the Government Gazette according to paragraph 5 of Article 17 of Law 3649/2008 (A' 39). A decision of the Chief of the Hellenic Police is issued for the placement of the personnel in the Services of the Hellenic Police, taking into account their preference statements by regional unit.

3. The personnel transferred according to paragraphs 1 and 2 are paid by the Hellenic Police. In the event that the transferred personnel receive lower monthly remuneration compared to the monthly remuneration of their originating Service, the difference is maintained as personal according to paragraph 4 of Article 27 of Law 4354/2015 (A' 176). The aforementioned personnel retain the pension and insurance status they had until the date of transfer.

4. The required credits for the total salary of the transferred personnel for the current year 2021, as well as for the year 2022, are transferred from the E.Y.P. to the Hellenic Police.

13. Since, according to paragraph 1 of Article 24 of Law 4624/2019: "1. The processing of personal data by public authorities for a purpose different from that for which it was collected is permitted when such processing is necessary for the fulfillment of the duties assigned to them and provided that it is: a) necessary to verify the information provided by the data subject, as there are reasonable indications that this information is incorrect; b) necessary to prevent risks to national security, national defense, or public safety or to ensure tax and customs revenues; c) necessary for the prosecution of criminal offenses; d) necessary to prevent serious harm to the rights of another person; e) necessary for the production of official statistics. (...)". Furthermore, Article 26 of the same Law provides the following: "1. The transfer of personal data from one public authority to another is permitted, provided that it is necessary for the execution of the duties of the transferring authority or the third party to whom the data is transferred and provided that the conditions allowing processing according to Article 24 are met. The third party to whom the data is transferred processes it only for the purpose for which it was transferred. Processing for other purposes is permitted only if the conditions of Article 24 are met. 2. Public authorities may transfer personal data to private entities provided that: a) the transfer is necessary for the execution of the duties of the transferring authority and the conditions of Article 24 are further met; b) the third party to whom the data is transferred has a legitimate interest in being aware of the transfer and the data subject has no legitimate interest in not having the data concerning them transferred; or c) the processing is necessary for the establishment, exercise, or support of legal claims and the third party has committed to the public authority that transferred the data that it will process it only for the purpose for which it was transferred. Processing for other purposes is permitted if the transfer is allowed according to paragraph 1 and the transferring authority has provided its consent for the transfer. (...)".

Regarding the compatibility of the aforementioned provisions of Articles 24 and 26 of Law 4624/2019 with the provisions of the GDPR, which E.Y.P. invokes, the Authority, in its Opinion No. 1/2020, concluded that the GDPR does not authorize the national legislator to establish new "national legal bases," but only to specify the legal bases of Article 6 paragraph 1 letters c and e of the GDPR,

15

under the terms and guarantees provided by the provisions of paragraphs 2 and 4 of Article 6 GDPR, and that from the provision of Article 6 paragraph 4 GDPR regarding further processing for other purposes, albeit different, compatible with the purposes of the initial collection, it follows that the national legislator is not obliged to take implementation measures for the further processing since the GDPR itself establishes the criteria under a) to e) of the said paragraph 4. With this opinion, it was specifically accepted that, even if it is considered that the national legislator was authorized by the

GDPR to establish "national legal bases" for the further processing of data under Article 6 paragraph 4 GDPR, these must only constitute a specification of the legal bases of Article 6 paragraph 1 subparagraphs c and e GDPR and must respect, among other things, the principles of legality of Article 5 paragraph 1 GDPR. With these considerations, the Authority opined that the provisions of the aforementioned Articles 24 and 26 of Law No. 4624/2019 do not meet any of the aforementioned substantive and procedural conditions and guarantees arising from the GDPR. In the same opinion, the Authority reserves the right to examine any specific issue related to the compatibility of the provisions of Law No. 4624/2019 with the GDPR that may arise in the context of exercising its powers and emphasizes that it will not apply provisions of Law No. 4624/2019 that are deemed to be in conflict with the GDPR or do not find a basis in "opening clauses - specifications."

14. Furthermore, according to Article 35 paragraph 1, subparagraph a of the Constitution, "No act of the President of the Republic is valid or executed without the countersignature of the competent Minister, who, by his mere signature, becomes responsible, and without its publication in the Government Gazette," while according to Article 42 paragraph 1, subparagraph a of the Constitution, "The President of the Republic issues and publishes the laws that have been voted by the Parliament within one month from their voting." From these provisions, the basic principle emerges, which is also based on other constitutional provisions, that for the completion of formal laws and presidential decrees, as well as other regulatory administrative acts, their publication in the Government Gazette is required as a constituent element of their validity. With its publication in the Government Gazette, the regulatory provision acquires legal status and can be applied, thus becoming accessible to citizens and creating a presumption of knowledge of it.

Moreover, an "act" of the President of the Republic, according to the meaning of Article 35 paragraph 1 subparagraph a of the Constitution, is any written act that he performs in his capacity as a state organ and constitutes an exercise of his authority according to the Constitution and the Laws. Furthermore, a prerequisite—besides the countersignature of the competent minister or, as the case may be, competent ministers—for the acts of the President of the Republic to be valid, according to Article 35 paragraph 1 subparagraph a of the Constitution, is their publication in the Government Gazette. The publication constitutes an external formal element, the absence of which renders the act void, and the requirement for publication is reiterated, specifically concerning formal laws, by Article 42 paragraph 1 of the Constitution.

15. Because for the processing in question, the EYP has the status of the data controller under Article 4 paragraph 7 GDPR in relation to the personal data of its staff, which included the complainant.

16. Because in this case, from the study of all the elements of the case, it emerges that on the date of the contested transmission, namely on 15-12-2021, the President of the Republic had signed the bill voted by the Parliament, which contained the provision related to the transfer of EYP staff; however, its publication in the Government Gazette took place one day later, specifically on 16-12-2021, at which point, and only then, did the relevant law acquire formal validity and legal status, according to the above. Therefore, on 15-12-2021, the EYP processed the personal data of the complainant by transmitting to the Minister of Citizen Protection, the Deputy Minister of Citizen Protection, and the Chief of the Hellenic Police, the document with protocol number ..., attached with the relevant lists of the serving staff of the EYP, which include personal data.

9 See Council of State 4108/1999 Plenary, reasoning 6 and Council of State 1374/2022 Section, reasoning 6

10 See Council of State 4105/1995 Section, reasoning 6

17

the complainant's data, specifically their full name, branch/category, rank, and degree title, without prior publication in the Government Gazette of the relevant law regarding the transfer of personnel from the National Intelligence Service (EYP), namely Law 4873/2021, resulting in the absence of a legislative basis for the said transfer during the contentious transmission, and without prior notification to the complainant, as the data subject for this transmission. In this manner, the contentious

processing was carried out in violation of the principles of legality, objectivity, and transparency (Article 5, paragraph 1, point a of the GDPR), resulting in the complainant's personal data being subjected to unlawful and unfair processing that occurred in a non-transparent manner concerning the data subject.

Furthermore, regardless of the reservations mentioned in paragraph 13 by the Authority regarding the validity of the provision invoked by EYP, Article 26, paragraph 1 of Law 4624/2019, which concerns the transmission of personal data from one public authority to another when necessary for the performance of the duties of the transmitting authority or the third party to whom the data is transmitted, this provision does not apply in this case, for the reason that the contentious transmission of the complainant's personal data to the Hellenic Police (ELAS) did not constitute the execution of EYP's duties, given that this obligation had not been assigned to it by the legislator, at least at the time of the contentious transmission, in relation to the transfer of the complainant. Therefore, it is unnecessary to examine whether the conditions of Article 24, paragraph 1, point b (as provided in point a of paragraph 1 of Article 26 of Law 4624/2019 concerning processing carried out by public authorities) are met, as well as to examine the claim made by EYP in its response document number ... that "a transmission of personal data took place from our Service to a public authority, the Ministry of Citizen Protection, under the terms of Article 26 of Law 4624/2019, namely within the framework of executing our service's duties, as well as the stipulated conditions of Article 24 of the aforementioned law, in view of the impending transfer of the complainant and the need to verify their details by the Hellenic Police, before the administrative act of their transfer is completed."

In light of the above, it is unnecessary to examine the complainant's claim that there was no relevant request to EYP for the said transmission from the authorities mentioned in Article 74 of Law 4873/2021 – among which EYP is not included – and that EYP acted voluntarily, arbitrarily deciding both on the transmission and on the personal data that were transmitted, without a relevant request from the Minister of Citizen Protection, given that the contentious provision at the time of the examined processing was invalid, according to the extensively analyzed points above (see paragraph 16) and, therefore, the contentious processing is inherently contrary to the principles of legality, objectivity, and transparency (Article 5, paragraph 1, point a of the GDPR).

Furthermore, given that the contentious processing is contrary to Article 5, paragraph 1, point a of the GDPR, and that, according to what is stated in paragraph 8, the fulfillment of the conditions for the application and adherence to the principles of Article 5, paragraph 1 of the GDPR is cumulatively required for personal data to be lawfully processed, it is unnecessary to examine the fulfillment of the other principles of lawful processing of data based on Article 5, as well as the examination of the conditions for the application of the legal bases of Article 6 of the GDPR, and the related claims made by the involved parties, regardless of the fact that EYP, as the data controller, does not invoke any of the legally specified bases in Article 6 of the GDPR and is unable to prove the legality of the said processing.

17. As mentioned above, the data subject was not informed about the transmission of their data, and the relevant claim by EYP that "the contentious provision had received significant publicity even before its enactment. Consequently, the complainant was already aware of their impending transfer to a service of the Hellenic Police (...)" is not substantial, as notification through the publicity invoked by EYP regarding this issue does not meet the requirements of Article 13 of the GDPR, according to which for the notification...

19. An action by the data controller is required, directed at the data subject, which did not occur in this case.

18. Because, following the above, it is established that the National Intelligence Service (EYP) as the data controller carried out the processing of the complainant's personal data in violation of a) the principles of lawfulness, fairness, and transparency of Article 5(1)(a) of the GDPR, as it based its actions on a non-existent law, and b) Article 13 of the GDPR because it did not inform the complainant about the specific processing as the data subject.

19. Because the violation of the fundamental principles for processing, as detailed above, incurs the imposition of administrative sanctions under Article 83(5)(a) of the GDPR, while the violation of the

right of data subjects provided for in Article 13 of the GDPR incurs the imposition of the relevant sanctions under Article 83(5)(b) of the GDPR. According to the GDPR (Recital 148), in order to strengthen the enforcement of the rules of this Regulation, sanctions, including administrative fines, must be imposed for each violation of this Regulation, in addition to or instead of the appropriate measures imposed by the supervisory authority in accordance with this Regulation.

20. Because the Authority, based on the above, considers that the imposition of a corrective measure is not sufficient to restore compliance with the provisions of the GDPR that have been violated and that, based on the circumstances established, an additional effective, proportionate, and deterrent administrative monetary fine must be imposed under Article 83 of the GDPR, both to restore compliance and to sanction the unlawful behavior.

21. Because furthermore, the Authority took into account the criteria for assessing the fine set out in Article 83(2) of the GDPR, paragraph 5 of the same article applicable in this case, Article 39(1) and (2) of Law 4624/2019 concerning the imposition of administrative sanctions on public sector entities, and the Guidelines 4/2022 of the European Data Protection Board for calculating administrative fines for the purposes of Regulation 2016/679, which were approved on 24/5/2023, as well as the factual data of the case under examination and in particular:

- i) The fact that the entity being complained about, in its capacity as data controller, violated the principle of lawfulness, fairness, and transparency provided for in Article 5(1)(a), that is, it violated a fundamental principle of the GDPR for the protection of personal data.
- ii) The fact that adherence to the principles provided for in Article 5(1)(a) of the GDPR is of paramount importance, primarily the principle of lawfulness, so that if this is lacking, the processing becomes unlawful from the outset, even if the other processing principles have been adhered to, especially in this case where no documentation was provided regarding whether any of the legal bases defined in Article 6 of the GDPR apply. On the contrary, the EYP justified the processing in question merely by citing the acceleration of the procedure for service-related reasons.
- iii) The fact that the entity being complained about, in the absence of a legislative basis for the processing in question, did not fulfill its obligation to prove the legality of this processing, while at the same time failing to demonstrate that it fulfilled its obligation to inform as provided for in Article 13 of the GDPR, as detailed above.
- iv) The fact that the aforementioned established violation is not proven to be attributable to the intent of the complained entity, but rather to its negligence, due to the alleged failure of the National Printing Office, while the acceleration of the transmission by the EYP was done for service-related reasons.
- v) The fact that the data controller did not delay in responding to the Authority's documents.
- vi) The fact that from the evidence presented to the Authority, based on which it established the aforementioned violations of the GDPR, it does not appear that the data controller caused material damage to the affected individual.

22. Based on the above, the Authority unanimously decides that an administrative sanction, as mentioned in the operative part, must be imposed on the complained entity as the data controller, which is deemed proportionate to the severity of the violation.

FOR THESE REASONS

The Authority,

Imposes on the complained National Intelligence Service (EYP) as the data controller the effective, proportionate, and deterrent administrative monetary fine appropriate to this specific case, according to its particular circumstances, totaling five thousand (5,000) euros, specifically four thousand (4,000) euros for the established violation of Article 5(1)(a) and one thousand (1,000) euros for the established violation of Article 13 of the GDPR, as detailed above, in accordance with Articles 58(2)(h) and 83(5)(a) and (b) of the GDPR.

The President

The Secretary

Konstantinos Menoudakos

Irini Papageorgopoulou